

M/S Gogi Ice And Cold Storage v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 8 March 2019 · WRIT - C No. 7448 of 2019 · **Writ petition dismissed on the ground of alternative remedy.**

HEADNOTE

A writ by a cold-storage consumer against DVVNL, disputing liability for minimum charges during disconnection, was dismissed: the petitioner did not dispute, and could not show any ground to bypass, the statutory Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005 read with the U.P.E.R.C. (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and thereafter the Ombudsman under clause 7.10(iv).

FACTUAL SUMMARY

The petitioner, M/S Gogi Ice And Cold Storage, filed a writ against Dakshinanchal Vidyut Vitran Nigam Ltd. over whether it was liable to pay minimum charges for the period of disconnection. After a 5 March 2019 listing to enable the licensee to take instructions, a Division Bench heard the petition on 8 March 2019. Counsel for the petitioner did not dispute the statutory Consumer Grievance Redressal Forum and Ombudsman remedies under the Electricity Supply Code, 2005, and could not show why those remedies should not be exhausted first.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF and Ombudsman alternative remedy

HOLDING

The writ petition challenging liability for minimum charges during disconnection was dismissed on alternative remedy. The petitioner did not dispute, and could not substantiate any ground not to exhaust, the statutory route of raising the grievance before the Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005 read with the U.P.E.R.C. (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and thereafter before the Ombudsman under clause 7.10(iv). ¶ 3-4

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A writ on minimum charges during disconnection was dismissed because clauses 7.10(i) and 7.10(iv) supplied the CGRF and Ombudsman route for the billing grievance. ¶ 3-4

consumer-grievance-redressal-forum-remedy-clause-7.10 Clause 7.10(i) CGRF, read with the 2003 Regulations, and thereafter clause 7.10(iv) Ombudsman, were treated as an adequate statutory alternative to a writ on electricity dues. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONSUMER IS LIABLE TO PAY MINIMUM CHARGES DURING THE PERIOD OF DISCONNECTION

The Court identified the dispute but did not decide it on merits, dismissing the writ so the petitioner could go to the CGRF and Ombudsman. ¶ 2-4

